



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

JAN 31 2005

DOT-E 14001

EXPIRATION DATE: December 31, 2006

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Koch Hydrocarbon, L.P.
Medford, Oklahoma
2. PURPOSE AND LIMITATION:
 - a. This exemption authorizes the use of a video camera and monitor to observe the loading and unloading operations of liquefied petroleum gas in cargo tank motor vehicles, from a remote control room instead of personnel remaining within 7.62 meters (25 feet) of the cargo tank motor vehicles. This exemption provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 172.203(a) and 172.302(c) in that marking the exemption number is not required, and § 177.834(i)(3) in that the loading of a cargo tank without the attendance of a qualified person within 25 feet of the cargo tank is not authorized, except as specified herein.
5. BASIS: This exemption is based on the application of Koch Hydrocarbon, L.P. dated October 13, 2004, submitted in accordance with § 107.105 and the public proceeding thereon

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6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Liquefied petroleum gas	2.1	UN1075	N/A

7. SAFETY CONTROL MEASURES:

a. PACKAGING - The authorized packaging is a DOT Specification MC 330 or MC 331 cargo tank motor vehicle authorized for the transportation of liquefied petroleum gas.

b. OPERATIONAL CONTROLS -

(1) Each cargo tank must be loaded and unloaded by a qualified person who is familiar with liquefied petroleum gas and with the proper procedures for its safe handling.

(2) The provisions of § 177.834 (i) must be complied with except that paragraph (3) is replaced with the following:

A designated plant Operator must observe all loading and unloading operations by means of a video monitor located in the facility Control Room. The loading and unloading system must be operated in accordance with the following conditions:

(i) The camera must be mounted 15 to 20 feet distant from the cargo tank motor vehicle, so as to provide an unobstructed view of all equipment involved in loading/unloading operations of the cargo tank. This will include domes, hose connections and safety relief devices.

(ii) Upon loss of video, loading or unloading operation must be immediately terminated. Shut-off valves operable from the Control Room must be provided.

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(iii) In the event of a remote system failure, the plant Operator must immediately resume attending the loading or unloading operations from within 7.62 meters (25-feet) of the cargo tank.

8. SPECIAL PROVISIONS:

a. A current copy of this exemption must be displayed at each facility where this exemption is used.

b. The plant Operator must visually inspect each cargo tank motor vehicle after it is loaded or unloaded, prior to departure.

c. Written procedures for training of the plant Operators, for their adherence to standard operating procedures, and for inspection and maintenance of video equipment and of the shut-off valve/remote control system must be carried out as described in the application for this exemption, on file with the Office of Hazardous Materials Exemptions and Approvals (OHMEA).

d. This exemption applies only to plant facilities of Koch Hydrocarbon, L.P. at the following locations:

Koch Hydrocarbon, L.P. NGL Plant
2001 S. Highway 81
Medford Oklahoma, 73759

Koch Hydrocarbon, L.P. NGL Plant
1910 S. Broadacres Road
Hutchinson, KS 67501

Koch Hydrocarbon, L.P. Butane Isomerization Plant
462 U.S. Highway 56
McPherson, KS 67460

e. The marking requirements of §§ 172.203(a) and 172.302(c) are waived.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: None other than as required by the HMR.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

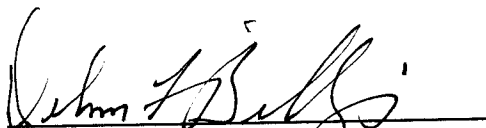
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this exemption must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when this exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this exemption are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this exemption must notify the Associate Administrator for Hazardous Materials Safety -- OHMEA, in writing, of any incident involving a package, shipment or operation conducted under terms of this exemption.

Issued in Washington, D.C.



for
Robert A. McGuire
Associate Administrator for
Hazardous Materials Safety

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DATE

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

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Copies of this exemption may be obtained by accessing the Hazardous Materials Safety Homepage at <http://hazmat.dot.gov/exemptions> Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

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